

SUBSCRIBER AGREEMENT

Between

EXPERIAN LESOTHO (PTY) LTD (REG NO. 2013/1531)
("Experian")

Of Block C Level 7 (Office C702) LNDC Development House Maseru 100 Lesotho, Email:
africalegal@experian.com ("**Domicilium**")

and

Company Name: _____ Registration Number: _____ ("**Subscriber**")

of _____ Physical address ("**domicilium**")

Postal Address _____ Telephone Number _____

Subscriber hereby engages Experian to provide Services, subject to this cover sheet ("**the Cover Sheet**"), the terms attached, and other schedules/annexures which is/are and/or may from time to time, be annexed hereto and signed by both Parties. By signing this Cover Sheet the Subscriber accepts the Agreement (and schedules attached thereto).

Signed at:-	_____
Date:-	_____
	For and on behalf of Experian
Signature	_____
Name	_____
Office	_____
	Who warrants his/her authority hereto

Signed at:-	_____
Date:-	_____
	For and on behalf of Subscriber
Signature	_____
Name	_____
Office	_____
	Who warrants his/her authority hereto

NO CHANGES TO THIS AGREEMENT SHALL BE VALID, UNLESS SUCH CHANGE HAS BEEN APPROVED BY EXPERIAN LEGAL AND SIGNED BY AN AUTHORISED REPRESENTATIVE OF EXPERIAN

1 INTERPRETATION

In this agreement, unless inconsistent with or otherwise indicated by the context –

- 1.1 **“the Act”** means the Lesotho Credit Reporting Act 1 of 2012;
- 1.2 **“Anti-Corruption Requirements”** mean all Applicable Law relating to anti-bribery and anti-corruption including the UK Bribery Act 2010 and the Prevention and Combating of Corrupt Activities Act 2004;
- 1.3 **“Anti-Slavery Requirements”** mean all Applicable Law relating to anti-slavery and human trafficking including the Anti-Trafficking in Persons Act No. 1, 2011 (to the extent applicable);
- 1.4 **“Agreement”** means this agreement (as amended, replaced or restated from time to time) and all of the SOW's, annexures and/or Schedules attached hereto from time to time and any other document specifically incorporated herein by reference
- 1.5 **“Applicable law”** means any of the following, from time to time, to the extent it applies to a party: (a) any statute, regulation, policy, by-law, ordinance or subordinate legislation (including treaties, multinational conventions and the like having the force of law); (b) the common law; (c) any binding court order, judgment or decree; (d) any applicable industry code, policy or standard enforceable by law; or (e) any applicable direction, policy or order that is given by the regulator in Lesotho ;
- 1.6 **“Application”** means all applications and software owned and licensed by Experian to the Subscriber from time to time and includes, but is not limited to Data, Credit Check, Codix, Compuscore, Xcellerator and Biometrix and any other computer program owned by Experian and licensed to the Subscriber for the Subscriber's internal business Use from time to time
- 1.7 **“Authorised Users”** means employees and/or members of the Subscriber that have been duly trained by Experian to use the Software;
- 1.8 **“Business Day”** means any day which is not a Saturday, Sunday and/or official public holiday in Lesotho;
- 1.9 **“Experian Materials”** means Software and any materials, documentation, scorecards or other items developed

and/or licensed by Experian to the Subscriber in connection with this Agreement and includes the Data;

- 1.10 **“Confidential Information”** means any proprietary information of either Party of whatsoever nature, whether in writing or in electronic format and includes, but is not limited to, information supplied to the Subscriber by its clients, information in respect of systems, business methods, credit information, trading and merchandising methods, financial models, business affairs, contractual and financial arrangements with third parties, data and operating instructions pertaining to computer software, any and all computer readable data and software programmes and all matters or information which relate or may relate to the business affairs of the Subscriber, its clients or third parties obtained from or supplied to Experian, but excluding always, any information which is already in the public domain or required to be disclosed in terms of any applicable law;
- 1.11 **“Copyright”** means all rights of copyright whether existing now or in the future in and to the Software, including without limiting the generality of the aforesaid, initial drawings, sketches, flowcharts and designs relating thereto;
- 1.12 **“CPI”, and “CPI%”** means the Consumer Price Index as published by the Lesotho Bureau of Statistics and Trading Economics from time to time and can be viewed at www.tradingeconomics.com. The CPI% (percentage) to be considered for any escalations shall be calculated by subtracting the CPI figure published twelve (12) months previously from the most recently published CPI figure, expressed as a % (percentage)
- 1.13 **“Credit Information”** means the information submitted by the Subscriber to Experian in accordance with the Data Submission Rules and the provisions of this Agreement which information will be validated, loaded and housed on the Experian database so that it can be accessed from Experian by the Subscriber;
- 1.14 **“Customer”** means a customer or user of services provided by the Subscriber;
- 1.15 **“Customer Data”** means any data owned by the Customer and provided to Experian in connection with this Agreement, by the Subscriber or by the Customer;

- 1.16 **"Data"** means any information, including the raw factual consumer credit information and other information permitted by law furnished to Experian, credit providers and other permissible sources in Lesotho which is arranged, supplied, provided, stored collected or processes by Experian and stored on the Database;
- 1.17 **"Database"** means the collection of data, including the Data and the tools provided by Experian for search and organisation, arranged in a systematic or methodical way comprising data records and data fields, all of which have been arranged by Experian and its employees, utilising their time, labour and skill, into a collection of inter-related independent files or data capable of being individually accessed and manipulated by the Subscriber;
- 1.18 **"Data Protection Laws"** means i) all data protection and privacy laws enacted in Lesotho, including but not limited to Data Protection Act, 2011 and ii) all other laws and regulations relating to data protection and privacy in any jurisdiction in which:
- 1.18.1. the relevant Personal Data is being Processed; or
- 1.18.2. in which the relevant data subject is located; or
- 1.18.3. in which the Supplier performs its obligations in terms of this Agreement.
- 1.19 **"Data Submission Rules"** means the rules for submitting credit information as attached hereto from time to time;
- 1.20 **"Effective Date"** means the date that this Agreement is signed by the party signing last in time;
- 1.21 **"Error"** means any error, problem or defect resulting from (a) an incorrect functioning of programming code, (b) information displayed on the Report that does not conform to the information provided by the supplier of such information, or (c) a corruption of data contained in the Database;
- 1.22 **"Installation Date"** means the date on which Experian shall install the Software on Subscriber's System as specified in the SOW;
- 1.23 **"Intellectual Property Rights"** means all present and future rights in the Software and other rights which may in the future be based thereon, including, but not limited to, all trademarks (whether registered or unregistered) and any copyright;
- 1.24 **"Interface"** means any application programming interface, software interface which Experian makes available to the Subscriber for purposes of accessing the Data
- 1.25 **"Materials"** mean Subscriber Materials or Experian Materials, as appropriate;
- 1.26 **"Parties"** means Experian and the Subscriber;
- 1.27 **"Personal Information"** shall have the meaning specified in the Data Protection Laws.
- 1.28 **"Prescribed Purpose"** means the purpose for which a credit bureau may release Credit Information as set out in Section 26(2) of the Act;
- 1.29 **"Related Company"** means, in relation to each Party, any holding company or subsidiary company of such Party and any other subsidiary undertaking of any such holding company ("a Related Company") and any director, office, employee, consultant representative, agent or adviser of such party or of any Associate Company of such Party. For these purposes "holding company" and "subsidiary company" or a company with similar wording have the meanings given in the Companies Act 18 of 2011, as amended from time to time
- 1.30 **"Research Report"** means a report that it compiled for the Subscriber in accordance with Subscriber's specific requirements from Customer Data that is procured from and/or submitted by a Customer to update or validate the latest company information including but not limited the latest financial statements, banking details, operations of the business;
- 1.31 **"Subscriber"** means the party whose details are recorded on the cover sheet and on the Subscriber Information Sheet attached hereto as Annexure 1;
- 1.32 **"Subscriber's Physical Address"** means the physical address/es listed by the Subscriber in Annexure 1;
- 1.33 **"Subscriber's System"** means the computer equipment required by the Subscriber for purposes of accessing the Services under this Agreement to be provided at the Subscriber's own cost and as listed in each SOW hereto;
- 1.34 **"Services"** means the services to which the Subscriber subscribes for, as more fully set out in each SOW;

- 1.35 **"Software"** means any and all software installed by Experian at the premises of the Subscriber, including but not limited to the Experian Credit Check Software;
- 1.36 **"SOW"** means one or more schedules attached hereto and describing the specific Services to be rendered by Experian which forms part of this Agreement. Each specific Service set forth in a SOW shall not be effective until such Service is authorised by the Subscriber's initial in the space provided and the SOW is executed by both parties in accordance with this Agreement;
- 1.37 **"Territory"** means Lesotho;
- 1.38 **"Use"** means the right granted by Experian to the Subscriber to operate the Software for the benefit of the Subscriber at the Physical Address of the Subscriber on the Subscriber's System;
- 1.39 **"VAT"** means Value-Added Tax payable in terms of the VAT Act;
- 1.40 **"the VAT Act"** means the Value-Added Tax Act 9 of 2001, as amended from time to time;
- 1.41 any reference to the singular includes the plural and vice versa;
- 1.42 any reference to natural persons includes legal persons and vice versa.
- 1.43 The clause headings in this Agreement have been inserted for convenience only and shall not be taken into account in its interpretation.
- 1.44 If any provision in a definition is a substantive provision conferring rights or imposing obligations on any party, effect shall be given to it as if it were a substantive clause in the body of the agreement, notwithstanding that it is only contained in the interpretation clause.
- 1.45 This agreement shall be governed by and construed and interpreted in accordance with the laws of Lesotho.

2 RECORDAL

- 2.1 The Subscriber wishes to make use of the Services as recorded in each SOW attached hereto.
- 2.2 Experian has the skill and expertise to provide the Services and the Subscriber wishes to appoint Experian to provide the Services.
- 2.3 The Parties enter into this Agreement to regulate the relationship between them in relation to the provision of the Services.

3 GRANT OF LICENCE AND APPOINTMENT

- 3.1 Experian is a registered credit bureau in accordance with the laws of Lesotho and the holder of an exclusive license to use and sub-license the Software to subscribers in the Territory.
- 3.2 The Subscriber and its Authorised Users wish to Use the Software as indicated on the SOW.
- 3.3 With effect from the Effective Date Experian hereby grants and the Subscriber accepts a non-exclusive, non-transferable sub-licence to Use the Software in the Territory on the terms and conditions set out in this Agreement.
- 3.4 It is specifically recorded that the Subscriber shall not have the right to sub-licence or transfer the license granted under this Agreement in any way, either in whole or in part, to any third party, and the Subscriber shall not modify, de-compile, disassemble or otherwise reverse-engineer the Software or merge it with any other Software.
- 3.5 The Subscriber shall allow Experian reasonable access to the physical address of the Subscriber to ensure compliance with the terms and conditions of this Agreement.
- 3.6 The license granted in terms of this Agreement shall continue for a period of 1 (one) year from the Effective Date and shall thereafter be automatically renewed for further periods of 1 (one) year, unless terminated in terms of clause 12.1.
- 3.7 Where the Subscriber procures Services directly from Related Companies of Experian under this Agreement by means of an SOW signed between the Subscriber and such Related Company, or where any Related Company of the Subscriber procures Services directly from Experian or a Related Company of Experian, such SOW will constitute a separate and divisible relationship between the Subscriber and the relevant Experian Related Company, or between the Subscriber's Related Company and Experian as the case may be, on the premise that the Experian or Subscriber Related Company will remain solely liable for any obligations agreed to or liability incurred by the relevant Experian or Subscriber Related Company in terms of the SOW, and the Experian Related

Company will be required to render the Services to the Subscriber or its Related Company in terms of the SOW.

4 INSTALLATION

- 4.1 Experian shall configure and install the Software on the Subscriber's System at the Subscriber's Physical Address.
- 4.2 Experian shall, subject to the provisions of clause 5.1, use its best endeavours to install the Software on the Installation Date.

5 PAYMENTS

- 5.1 The Subscriber agrees to pay Experian on the due date for payment as recorded in the specific SOW, or as agreed to between the Parties. All amounts are payable within 7 days from date of receipt of invoice. It is recorded that if the Subscriber has more than one branch using the Services, each branch must enter into a separate SOW.
- 5.2 If the Software is installed on or before the 20th (twentieth) calendar day of the month, the Subscriber shall pay the monthly fee payable in respect of the relevant month in which the Software was installed by Experian upon the signature of this Agreement by it.
- 5.3 Unless otherwise stipulated in writing by Experian, payment of any amounts due to Experian on a monthly basis in terms of this Agreement shall be made in advance on or before the 29th (twenty ninth) calendar day of every month and payment of any amount due in respect of further online searches not covered by the said monthly fee up to and including the 19th (nineteenth) calendar day of every of every month shall be paid in arrears on or before the 29th (twenty ninth) calendar day of every month.
- 5.4 All amounts payable in terms of this agreement are exclusive of VAT (unless indicated otherwise), all applicable VAT shall be paid by the Party responsible for the payment of the fees and shall increase as set out in 18.11
- 5.5 All outstanding amounts due by the Subscriber to Experian not received by Experian on the due date for payment shall bear interest at prime rate as published and/or determined by the Central Bank of Lesotho from time to time plus 2 (two) percent

- 5.6 If the Subscriber fails to pay any amount owing to Experian within 10 (ten) Business Days of receipt of a notice from Experian calling upon it to effect payment, Experian shall be entitled to deny the Subscriber access to its database and shall further be entitled to charge the Subscriber a reconnection fee in order to provide the Subscriber with access.
- 5.7 If Experian terminates this Agreement due to a breach by the Subscriber, Experian shall, in addition to any other remedy it may have, be entitled to retain all monies already paid by the Subscriber as a genuine estimate of liquidated damages.
- 5.8 Experian may appropriate any payments made by or on behalf of the Subscriber to any indebtedness of whatsoever nature of the Subscriber to Experian.
- 5.9 In the event Experian happens to have any debt against the subscriber, the subscriber may set off such a debt with any moneys due and payable by the Subscriber to Experian.
- 5.10 Where the Subscriber is desirous of becoming a supervised financial institution, regulated by the Central Bank of Lesotho and has entered into this Agreement with Experian while awaiting the issuing of its license, for the purposes of obtaining credit bureau information services and/or loan management software (LMS) as the case may be, and as further indicated by the Subscriber signing the relevant SOW, the Subscriber agrees to pay to Experian an upfront non-refundable initiation fee on the Effective Date.

6 EXPERIAN OBLIGATIONS

Experian undertakes to:

- 6.1 use reasonable care, skill and diligence in delivering the Services to the Subscriber that can be expected from the provider of credit bureau services;
- 6.2 comply with the duties of a credit bureau as set out in the Act; and
- 6.3 use reasonable care skill and diligence in the collection and collation of any data on which the Services are based or which is included within the Services.

- 6.4 to provide the Subscriber with access to the Services at all times;
- 6.5 to promptly report any anticipated down time and/or lack of access (which is unplanned) to the Services to the Subscriber as well as the estimated time within which the Services shall be reinstated;
- 6.6 make every effort to keep the Database running continuously and the Subscriber acknowledges that from time to time, the Database will be taken offline due to routine maintenance, upgrades and other required events and Experian therefore agrees to notify the Subscriber by e-mail, at least 3 (three) Business Days prior, of planned maintenance events that may affect the delivery of the Services;
- 6.7 to comply with any applicable laws relating to the acquisition of exchange control approval and/or withholding tax and/or any tax laws as may be applicable to the royalty payments made by the Subscriber;
- 6.8 to comply with data protection and privacy legislation in Lesotho;
- 6.9 use all reasonable endeavours and to comply with the Act to ensure the completeness of the Data. Whilst Experian considers the Services and Data it supplies the Subscriber with to be reliable, Experian cannot and does not guarantee the accuracy or completeness of the Services. The Subscriber accordingly recognises that it is the Subscriber's responsibility to determine the usefulness of the Services and the Subscriber acknowledges that it is responsible for the entire risk with respect to the quality and performance and reliance that it places on the Data provided through the Service and the Subscriber shall bear all risk in connection with its use of the Services, save for instances where Experian has been negligent in providing the Services or if such Services is provided fraudulently by Experian.
- 6.10 use reasonable care in skill to minimise any Errors in the Services.: The Service may however contain technical and typographic errors and other Errors and the Subscriber acknowledges that neither Experian nor its third party suppliers or agents shall be liable for any liability for Errors or omissions with respect to the Database, or the delivery of the Service, provided that it was not caused by

Experian's gross negligence or fraud. Notwithstanding the aforementioned, Experian undertakes to use its best endeavours to fix any Errors within a reasonable period of time;

- 6.11 Communicate any changes that will have an effect on the Interfaces used by the Subscriber, to the Subscriber ahead of time. The Subscriber acknowledges and agrees that as the Services made available to the Subscriber from the Database is continually being amended and updated by Experian, Experian may, from time to time, and in Experian's sole discretion, change the content or the format of the Database, Data and Services and the location of delivery, in accordance with general changes made to the Database in order to improve its operation and efficiency. In the event that the foregoing changes will have any effect on the Interfaces used by the Subscriber (meaning that the real-time exchange of information will break down), such breaking changes will be communicated to the Subscriber ahead of time and the Parties shall agree to the timetable for roll-out of the proposed change in order to manage the change with the least possible amount of interruption to the Services;
- 6.12 utilise its best efforts to maintain the security of the Database, the Interfaces, or Applications. The Subscriber acknowledges and agrees that no damages can be attributed to Experian by virtue of a breach of security on the Interfaces, or Applications provided by Experian if the Subscriber has failed to install the proper security measures on its systems.

7 OBLIGATIONS OF SUBSCRIBER

The Subscriber shall:

- 7.1 ensure that the Subscriber's System is available at the Subscriber's Physical Address prior to the Installation Date.
- 7.2 comply with the Data Submission Rules.
- 7.3 utilise the Software solely at the Subscriber's Physical Address and solely in respect of the business conducted at the Subscriber's Physical Address. If the Software is utilised for any purposes other than for the purposes of the business conducted at the Subscriber's Physical Address, the Subscriber shall upon demand by Experian pay to

Experian a penalty of M3 000.00 (three thousand Maloti) without prejudice to any of Experian's other rights to claim damages or other remedies in terms of this Agreement.

- 7.4 The Subscriber shall comply with all its duties as set out in the Act and as set out in clause 17;
- 7.5 ensure that only Authorised Users shall operate the Software;
- 7.6 ensure that any information supplied in terms of this Agreement is current and verifiable and that it has provided its customer with the necessary notice of its intention to submit such client's default to Experian;
- 7.7 make the consumer aware of the credit information being collected, that Experian will receive the information, that the information can be shared with 3rd parties through Experian and will advise the consumer of, the name and address of Experian;
- 7.8 only collect and supply adequate and relevant information to Experian;
- 7.9 provide credit information that is accurate, complete, not misleading and up to date;
- 7.10 ensure that the credit information supplied contains the full name, ID number and date of birth, in case of juristic persons, the registration number, licence number or tax number, of the consumer. If the consumer is a foreign natural person then a consumer's passport number shall be included;
- 7.11 ensure that the credit information supplied to Experian shall also contain the consumer's residential address and telephone number, details of the consumer place of work and employer, if self-employed or unemployed affidavit or any acceptable document to that effect;
- 7.12 ensure that credit information removed upon a consumer dispute under section 32 of the Act shall not be re-submitted to Experian;
- 7.13 ensure that the credit information is supplied in such a manner as to ensure the integrity of the information, prevent, loss, damage, unauthorised destruction, unlawful credit access or processing;
- 7.14 comply with Experian's information security practices as disclosed by Experian from time to time;
- 7.15 only access information for the prescribed purposes set out in the Act;

7.16 not use the information to unfairly discriminate against a consumer;

7.17 ensure that it has obtained consent from the consumer where consent is required to access the information;

7.18 prior to granting credit, take reasonable steps to ensure the likelihood and ability of the consumer to satisfy in a timely manner the debt obligations under the agreement by accessing credit information;

7.19 ensure that its directors, employees, members, or representatives shall, at all times, comply with the provisions of the Act as well as any rules promulgated from time to time by the Central Bank of Lesotho.

8 SPECIAL TERMS IN RESPECT OF RESEARCH REPORTS

8.1 When instructing Experian to conduct and provide a Research Report on its Customer, the Subscriber warrants that:

8.1.1 The request for a Research Report arises from, including but not limited to, an application by the Customer for goods or services on credit terms from the Subscriber, or a tender submitted by the Customer, or financing of the Customer's debtor's book;

8.1.2 it has notified the Customer that Experian would be instructed to conduct and provide a Research Report on the Customer.

8.1.3 it has obtained the Customer's Consent, where Consent is required by applicable law, that Experian may process the Customer Data that is procured during the conducting of the Research Report and use (and copy) the Customer Data for its business purposes, including using any financial data submitted by the Subscriber on the Customer and/or by the Customer to Experian for credit scoring or financial ratios. In no event, shall Experian be permitted to disclose the actual financial data provided by Subscriber on the Customer and/or by the Customer to Experian directly to any third party, unless authorized by Customer.

8.2 Should the Customer wish to dispute the accuracy of the Research Report, the Subscriber shall inform the Customer to direct the dispute to Experian on email address ServiceDeskSouthAfrica@experian.com; and the dispute shall be dealt with in accordance with the Act.

9 PERSONAL INFORMATION AND DATA PROTECTION

9.1 Each Party undertakes to use its reasonable endeavours to procure that all of its employees, data operators, agents and contractors comply with Data Protection Laws and Applicable Law in connection with the performance of its obligations and exercise of its rights under this Agreement.

9.2 The Subscriber warrants that –

9.2.1 where it has or will provide information and/or data, or access to information or data, including Personal Information, to Experian, it has obtained the required permissions and consents to the extent necessary and in compliance with the provisions of Data Protection Laws and/or any other relevant legislation relating to data- and consumer protection to enable it to lawfully provide such information or data, including Personal Information, to Experian;

9.2.2 where Experian has provided the Subscriber with data and information, or access to data or information, including Personal Information, as a result of or in the course of the provision of the Services, it shall at all times comply with the provisions of Data Protection Laws and/or any other relevant legislation relating to data and consumer protection in all its dealings with such data and information, including Personal Information;

9.2.3 where the Subscriber requests Special Personal Information, or access to Special Personal Information, as a result of or in the course of the consuming the Services, it shall obtain the Data Subject's consent prior to requesting such Special Personal Information as required by Data Protection Laws; and

9.2.4 where it Processes Personal Information (which includes Consumer Credit Information) from Experian it shall:

9.2.4.1 implement appropriate technical and organisational measures to ensure a level of data security relating to the Personal Information is appropriate to the risk presented by the Processing;

9.2.4.2 notify Experian immediately by email to the address in clause 9.6, but no later than 24 hours of becoming aware or suspecting a breach of the Subscriber's data infrastructure resulting in any unauthorised or unlawful use, disclosure or Processing of the Personal Information;

9.2.4.3 ensure that persons authorised by Subscriber to Process the Personal Information from Experian, have committed themselves to confidentiality;

9.3 Where there is cross border transfer of data, the parties agree to comply with the principles of the Data Protection Act, 2011, the Subscriber specifically agrees that it will ensure that it has the consent of the data subject to transfer data to South Africa, where the data processing is required to be done in South Africa.

9.4 Where one Party (the "Data Processor") processes personal data on behalf of the other Party or its Affiliates (the "Data Controller"), the Data Controller shall determine the purposes for and the manner in which the personal data are processed and the Data Processor shall only process those personal data in accordance with the Data Controller's instructions (and all processing in accordance with this Agreement shall be deemed to be on the instructions of the applicable Data Controller).

9.5 Without prejudice to the generality of clause 9.1, with respect to any processing of Personal Information under this Agreement each Party shall (and shall ensure that any of its data operators shall) take appropriate technical and organisational security measures to ensure the integrity and confidentiality of all Personal Information against unauthorised or unlawful processing of Personal Information supplied to it by the other Party and against accidental loss or destruction of, or damage to, that

Personal Information in accordance with the requirements in the Data Protection Laws.

- 9.6 Experian appointed an Information Officer as required and authorised in terms of Data Protection Laws. Any privacy incidents, queries or concerns relating to the processing of Personal Information in terms of this Agreement should be addressed to the Information Officer at: informationofficerafrica@experian.com or Experian's Domicilium address.
- 9.7 Each Party will promptly report to the other Party any security incidents or breaches or attempted breaches relating to the other Party's Personal Information and will provide relevant information to the other Party upon request.

10 INTELLECTUAL PROPERTY RIGHTS

- 10.1 The Subscriber acknowledges that any and all of the intellectual property rights used or embodied in or in connection with the Software are, and will remain, the sole property of Experian.
- 10.2 The Subscriber shall not question or dispute the ownership of the intellectual property at any time during the continuation in force of this Agreement, nor at any time after its termination.
- 10.3 Experian warrants that, to the best of its knowledge, the Software does not infringe upon or violate any intellectual property rights of any third party.
- 10.4 The Subscriber will notify Experian of any claim which may be made against Experian or the Subscriber alleging that the Software infringes upon the intellectual property rights of a third party as soon as it becomes aware of any such actual or potential claim and Experian shall take immediate control of such proceedings to finality at its own cost.
- 10.5 Experian indemnifies and holds the Subscriber harmless against any and all claims of whatsoever nature by any third party in relation to the Software.
- 10.6 The Subscriber shall cooperate with the Experian and provide reasonable assistance in providing all available information in relation to any claim by any third party.
- 10.7 The Subscriber shall not copy the Software in whole or in part, provided that the Subscriber may copy the Software in whole or in part, in printed or machine-readable form at

the Subscriber's Physical Address for archive or emergency restart purposes.

- 10.8 The Parties record and agree that all such copies shall be, and remain, the property of Experian.
- 10.9 The Subscriber agrees not to remove, change or destroy any proprietary markings or legends appearing on or contained within the Software, and the Subscriber agrees that such proprietary markings or legends shall appear on all copies of the Software made by the Subscriber in terms of this Agreement.
- 10.10 The Subscriber undertakes to maintain accurate and up-to-date records of the number and location of all copies of the Software and it hereby irrevocably authorises Experian to inspect such records upon reasonable notification.

11 MAINTENANCE AND SUPPORT

- 11.1 Experian shall maintain the Software and ensure continued operation of and access to the Software at all times during the subsistence of this Agreement at Experian's costs.
- 11.2 If, the Parties identify any maintenance or support requirements in respect of the Software as a result of the Subscriber failing to use the Software in accordance with the instructions provided by Experian from time to time, the Software not being used by an Authorised User, the Software not being used on the Subscriber's System or as a result of the fact that the Subscriber's System, including, inter alia, its hardware, needs repair, then, and in such event, Experian notify the Subscriber in writing of same and provide a cost estimate for conducting such maintenance and support at its hourly rate applicable from time to time.
- 11.3 Experian shall be entitled to charge the Subscriber for any reasonable expenses or disbursements incurred in relation to any maintenance and support services, including, inter alia, all travelling, accommodation and subsistence expenses that Experian is obliged to pay to its employees or agents in order to provide the maintenance and support with the prior written approval of the Subscriber.
- 11.4 In the event that Experian, or its agent, purchases any part or component required by the Subscriber's system on

the written instruction of the Subscriber and upon the Subscriber agreeing in writing to the cost of the purchase, Experian shall retain ownership in any such part or component until such time as all amounts due in respect of the maintenance and support, including, inter alia, the cost of the part or component has been received by Experian.

12 TERMINATION

12.1 Either party may terminate this Agreement by giving one calendar months' written notice to the other.

12.2 In the event of any of either Party ("the Defaulting Party") committing a breach of any of the terms of this Agreement and failing to remedy such breach within a period of 5 (five) Business Days after receipt of a written notice from the other Party ("the Aggrieved Party") calling upon the Defaulting Party so to remedy, then the Aggrieved Party shall be entitled, in its sole discretion and without prejudice to any of its other rights it may have in law, either to claim specific performance of the terms of this Agreement or to terminate this Agreement forthwith and without further notice, claim and recover damages from the Defaulting Party.

12.3 In the event of the termination of this Agreement, the Subscriber shall within 14 (fourteen) calendar days, destroy the Software and any documentation supplied by Experian together with any copies thereof and direct a facsimile to Experian certifying that this has been done.

12.4 Experian may (upon its discretion) immediately terminate this agreement or suspend access to Services (without having to give notice) in the event of (i) suspected unauthorised data access; (ii) default of payment; (iii) suspected breach of the terms of this Agreement or Experian policies; (iv) failure to pass Experian's know your customer or customer due diligence requirements; (v) any actions by the Subscriber that may result in reputational risk for Experian; (vi) any breach or an allegation of a breach of this Agreement and/or any law; or (vii) upon becoming aware at any time that the Subscriber is on an applicable sanctions list maintained by such sanction bodies that applies to Experian, and that such listing prevents or materially affects Experian's ability to provide the Services or receive payment.

12.5 The Parties acknowledge that the provisions of 9.5 and 10 shall survive the termination of this Agreement.

13 CONSEQUENCES OF TERMINATION

13.1 Upon lawful cancellation of this Agreement due to a breach of this Agreement by the Subscriber, without prejudice to any rights that Experian may have, the Subscriber shall (i) deliver up, and/or at Experian's option, forthwith erase and destroy, all machine-readable material containing Confidential Information and any and all related documentation, and certify in writing by way of a certificate from the Subscriber's managing director attesting to such delivery, erasure and/or destruction as is satisfactory to Experian and (ii) pay all outstanding fees within 10 days.

13.2 In the event that the Agreement terminates due to effluxion of time or by agreement between the Parties, and if permitted by the law, the Subscriber shall be entitled to retain the Data and shall, to the extent required, be licenced by Experian on a perpetual, royalty free basis (with the right to adapt) to use the Data for its own internal purposes. The aforesaid licence shall not permit the Subscriber to offer bureau type service in competition with Experian and it is agreed that the Subscriber shall not create a database of the Data and that the Subscriber shall not sell, share or commercially gain in the Data, except if otherwise allowed for by the Act.

14 LIMITATION OF LIABILITY

14.1 Experian's services are not intended to be used as the sole basis for any business decision, nor to relieve the Subscriber of its obligation to comply with its own obligations under Applicable Law. Experian Data is based upon data which is provided by third parties, the accuracy and/or completeness of which it would not be possible and/or economically viable for Experian to guarantee. Experian's services also involve models and techniques based on statistical analysis, probability and predictive behaviour. The Subscriber acknowledges that it is prudent to use, and it is responsible for using, the Services as one of many factors in its decision-making process, and for determining additional factors. Therefore, Experian will be liable if it fails to comply with its obligation under clause 6.1 and 6.2, but

notwithstanding the above, Experian is not able to accept any other liability for:

- 14.1.1 any inaccuracy, incompleteness or other error in the Data which arises as a result of data provided to Experian by any data provider; or
- 14.1.2 any failure of the Services to achieve any particular result for the Subscriber.
- 14.2 Without affecting the foregoing, a Party shall not be liable, and hereby disclaims all liability for (i) any interruption, malfunction, downtime or other failure of the Services or Database for whatever reason, (ii) any interruption, malfunction, downtime or other failure of the goods or services provided by third Parties, including, without limitation, telco provider, Internet service providers, electricity providers or local authorities or (iii) an event of force majeure or any other event over which such Party has no direct control.
- 14.3 Experian shall exercise reasonable care when rendering the Services. Nothing in this Agreement shall be construed as Experian providing the Subscriber or any third party with a guarantee against loss, liability, injury or damages. Subject to the foregoing, to the maximum extent permitted by applicable law Experian disclaims all other guarantees and conditions not expressly given.
- 14.4 Subject to clause 14.5, each party shall fully indemnify the other party against:
 - 14.4.1 any amounts paid by the indemnified party to any third party as a result of or in connection with any claim which that third party brings against the indemnified party alleging that its Intellectual Property Rights are infringed by the provision by the indemnifying party to the indemnified party of the indemnifying party's Materials or the use of the indemnifying party's Materials by the indemnified party as permitted by the terms of this Agreement; and
 - 14.4.2 any associated legal expenses reasonably and properly incurred.

14.5 The indemnities in clause 14.4 shall not apply to the extent that any claim arises as a result of use of any infringing Materials supplied or developed by the indemnified party, and are subject to the indemnified party:

- 14.5.1 notifying the indemnifying party promptly on becoming aware of any matter or claim to which the indemnity might relate;
- 14.5.2 not making any admission, settlement or payment in respect of such matter or claim, other than a payment made pursuant to a court order, without the prior written consent of the indemnifying party (such consent not to be unreasonably withheld or delayed); and
- 14.5.3 allowing the indemnifying party, where appropriate, to appoint legal advisers of its choice and to conduct and/or settle negotiations and/or proceedings relating to such matter or claim and the indemnified party shall comply with the indemnifying party's reasonable requests in the conduct of any such negotiations and/or proceedings.
- 14.6 If any claims are made, or in Experian's reasonable opinion are likely to be made, by any third party alleging that its Intellectual Property Rights are infringed by the Subscriber's use of the Experian Materials as permitted by the terms of this Agreement, Experian may at its sole option and expense:
 - 14.6.1 procure for the Subscriber the right to continue using the relevant Experian Materials (or any part of them) in accordance with the terms of this Agreement; and/or
 - 14.6.2 modify the relevant Experian Materials to avoid the infringement or replace the relevant Experian Materials with non-infringing materials, whilst still providing the same, or substantially similar, functionality to the infringing materials.
- 14.7 Neither party excludes or limits its liability to the other for any of the following (and nothing in this Agreement shall be construed as excluding or limiting such liability):

- 14.7.1 for personal injury or death resulting from its negligence or that of its employees, agents and/or sub-contractors;
- 14.7.2 for breach of Clause 16 (Confidentiality);
- 14.7.3 (in the case of the Subscriber) for any intentional breach of Clause 7;
- 14.7.4 for any matter which it would be illegal for that party to exclude and/or limit, or attempt to exclude and/or limit, its liability;
- 14.7.5 for that party's fraud or fraudulent misrepresentation; or
- 14.7.6 in the case of the Subscriber, for any unlawful use of the Data or use of the Services without a Prescribed Purpose.
- 14.8 Except as provided in clause 14.7, the liability of Experian to the Subscriber in respect of any claims (whether in contract, negligence, for breach of statutory duty or under any indemnity or otherwise) brought under or in connection with this Agreement shall be limited to the amounts paid by the Subscriber to Experian in terms of the Agreement for that specific Service for a period of 3 (three) months preceding the instance from which such liability arose.
- 14.9 Subject to clause 14.7, neither party shall be liable to the other (whether in contract, negligence, for breach of statutory duty or under any indemnity or otherwise) for:
 - 14.9.1 any indirect or consequential loss;
 - 14.9.2 the following types of financial loss: loss of profits; loss of earnings; loss of business or goodwill; even if that party had notice of the possibility of the other party incurring such losses; or
 - 14.9.3 the following types of anticipated or incidental losses: loss of anticipated savings; increase in bad debt; failure to reduce bad debt; even if that party had notice of the possibility of the other party incurring such losses.

15 INDEMNITY

Subject to the provisions of 14 above, the Subscriber hereby agrees to protect, defend, hold harmless and indemnify

Experian against all actual or contingent liabilities, losses, claims, demands, legal proceedings, costs, fees, compensation, expenses whatsoever arising out of, or resulting from, or in connection with:

- 15.1 acts or omissions by the Subscriber, its agents, representatives, employees or sub-contractors;
- 15.2 breach of the terms of this Agreement by the Subscriber;
- 15.3 inaccurate, incomplete or outdated information; and
- 15.4 unauthorised use of the Services.

16 CONFIDENTIALITY

- 16.1 The Parties hereby undertake that they shall treat in the strictest confidence all Confidential Information howsoever such information may be disclosed by the disclosing Party, and without limiting the generality of the aforesaid, whether orally, visually, electronically or through an inspection of documentation or otherwise.
- 16.2 The Parties hereby acknowledge that the Confidential Information disclosed by either Party in terms of this Agreement shall be utilised solely for purposes of credit checks for business activities only and for no other purpose whatsoever without the prior written consent of the disclosing Party.
- 16.3 The Parties undertake that neither their employees, representatives, agents or assigns shall divulge or disclose to any person whatsoever, in any form or manner whatsoever, either directly or indirectly, any of the Confidential Information for any purpose other than a bona fide credit check or for other legally allowed purposes.
- 16.4 The Parties and their employees, representatives, agents and assigns shall not use, exploit or permit the use of Confidential Information for any purposes other than the purpose for which it is disclosed and shall not use for their own benefit, or for the benefit of any third party (other than for the purpose for which it was disclosed) any of the Confidential Information.
- 16.5 Where Experian processes Personal Information contained within any Subscriber data, the terms of Clause 9 shall govern such processing and Personal Information contained within Subscriber data shall not therefore be considered Confidential Information for the purposes of this Clause 16.

17 WARRANTIES

The Subscriber warrants that-

- 17.1 It is a registered bank and credit provider in accordance with the laws of Lesotho and shall remain as such for the duration of the Agreement;
- 17.2 It shall provide Experian with a copy of its registration certificate with the Central Bank of Lesotho and acknowledges that Experian will only activate the Services and/or Software upon receipt of the Subscriber's registration certificate;
- 17.3 any information supplied in terms of this agreement is current and verifiable and that it has provided its customer with the necessary notice of its intention to submit such client's default to a credit bureau;
- 17.4 it has made the consumer aware of the credit information being collected, that the bureau will receive this information, the information can be shared with 3rd parties through the bureau and will advise the consumer of, the name and address of the bureau to whom the information is supplied;
- 17.5 it shall only collect and supply information to Experian that is adequate and relevant;
- 17.6 the credit information supplied is accurate, complete, not misleading and regularly updated as required by the Data Submission Rules;
- 17.7 the credit information supplied contains the full name, ID number and date of birth, in case of juristic persons, the licence number or tax number, of the consumer. If the consumer is foreign then a consumer's passport number shall be included;
- 17.8 the credit information supplied to the bureau shall also contain the consumer's residential address and telephone number, details of the consumer place of work and employer, if self-employed or unemployed affidavit or any acceptable document to that effect;
- 17.9 that credit information removed upon a consumer dispute under section 32 of the Act shall not be re-submitted to Experian;
- 17.10 that the credit information will be supplied in such a manner as to ensure the integrity of the information, prevent, loss, damage, unauthorised destruction, unlawful credit access or processing;

- 17.11 shall comply with Experian's information security practices;
- 17.12 it will only access information for the prescribed purposes set out in the act;
- 17.13 it will obtain the Consumer's explicit consent prior to accessing data provided to Experian by South African Credit and Risk Reporting Association members and other non-Lesotho data providers and credit bureaus, which consent must specifically instruct Experian to release the data to the Subscriber and allows Experian to transfer the data across border;
- 17.14 it will not use the information to unfairly discriminate against a consumer;
- 17.15 it will ensure that it has obtained consent from the consumer where consent is required to access the information;
- 17.16 if the Subscriber is a credit provider, it shall prior to granting credit, take reasonable steps to ensure the likelihood and ability of satisfying in a timely manner the debt obligations under the agreement by accessing credit information;
- 17.17 the Subscriber, its directors, employees, members, or representatives shall, at all times, comply with the provisions of the Act as well as any rules promulgated from time to time by the Central Bank of Lesotho.

18 COMPLIANCE ASSESSMENT

- 18.1 Experian or its authorised representative will be entitled, on reasonable notice and during normal business hours, to conduct a compliance assessment / investigation off-site or at the Site or business premises of the Subscriber to determine whether the Subscriber complies with this Agreement. Experian will observe the Subscriber's procedures relating to confidential information and will take reasonable steps to minimise disruption to the Subscriber's business.
- 18.2 The Subscriber reserves the right, by itself or its appointed representatives, to audit and inspect Experian's facilities and records, limited to such that contribute to the Services, so as to verify conformance with this Agreement.
- 18.3 The Subscriber shall provide written notice to Experian of the Subscriber's intention to audit and inspect, as detailed

above, by providing no less than 10 (ten) Business Days' notice of such an audit taking place.

18.4 Experian shall comply with all reasonable requests during the course of the audit and inspection, so as to facilitate the verification of conformance with this Agreement.

18.5 The results of any such audit and the resultant corrective actions, if any, will be agreed upon between the Subscriber (or the Subscriber's representative) and Experian. Any such remedial agreements shall be binding in their nature and in the timely implementation thereof by Experian.

19 GENERAL

19.1 **Anti-Corruption and Anti-Slavery.** Each of the parties shall in connection with this Agreement: (a) comply with the Anti-Corruption Requirements and the Anti-Slavery Requirements; and (b) not engage in any activity, practice or conduct which would constitute either a tax evasion facilitation offence or a foreign tax evasion facilitation offence under any prevailing local or international laws. Each party shall have and shall maintain in place throughout the duration of this Agreement its own policies and procedures to ensure compliance with clause 19.1(a), including adequate procedures under the UK Bribery Act 2010 and/or the Prevention and Combating of Corrupt Activities Act 2004 (as is applicable to a party), and will enforce them where appropriate. Each party shall promptly report to the other (i) any request or demand for any undue financial or other advantage of any kind received in connection with this Agreement; and (ii) any slavery or human trafficking in a supply chain which has a connection with this Agreement.

19.2 **Force Majeure.** Neither Party shall not be liable to the other for any loss, damage or delay caused by war, riots, civil commotion, strikes, embargos, natural disasters or other contingencies beyond Experian's control which may prevent or delay the affected Party in performing any obligations. Provided if the force majeure circumstances shall last for more than 1 (one) month, either Party shall have the right to terminate the Agreement by giving written notice thereof to the other. Experian shall endeavor to continue rendering the Services but shall be under no

obligation to do so while the force majeure circumstances continue.

19.3 **Certificate of indebtedness.** A certificate under the hand of any director or manager of Experian (whose appointment need not be proved), as given from time to time, in respect of the indebtedness of Subscriber in terms of this Agreement or in respect of any other facts shall be prima facie evidence of the Subscriber's indebtedness to Experian and/or such other fact and shall be sufficient for all legal proceedings.

19.4 **Governing Law.** This Agreement will be deemed to have been concluded in Lesotho and will be governed by and construed in accordance with the laws of the Kingdom of Lesotho and all disputes, actions and other matters relating thereto will be determined in accordance with such law. The Parties submit to the non-exclusive jurisdiction of the High Courts of Lesotho in respect of any dispute, matter or proceedings arising out of this Agreement.

19.5 **Notices.** The Parties choose as their domicilium citandi et executandi ("domicilium") for all purposes their address as stated on the cover sheet to this Agreement. Either Party may change its domicilium by giving written notice to the other. Any notice to a Party's domicilium shall be in writing, provided that an electronic notification shall be regarded as being in writing, and shall be deemed to have been received on the 8th (eighth) day after the date of posting, if sent by prepaid registered post, or on the date of delivery or transmission if delivered by hand, transmitted by facsimile or by electronic transmission.

19.6 **Dispute Resolution.** Any complaints which the Subscriber may have shall be directed in writing to Experian's Customer Service Division at an address to be provided by Experian. If the complaint has not been resolved to the satisfaction of the Subscriber within 5 (five) Business Days of referral of the complaint to the Customer Service Division, the dispute will be referred to arbitration in terms of the Arbitration Act of 1980 and the unsuccessful party shall pay the costs of thereof. The Arbitrator shall be appointed by means of a written Agreement by both parties. Only the Subscriber and the Subscriber's representative(s) and Experian and Experian's representative(s) may attend the arbitration.

Both the Subscriber and Experian shall keep the fact that a dispute has arisen, the record of the arbitration proceedings, as well as the arbitrator's decision, confidential. Notwithstanding the above provisions, either Party reserves the right to institute action in any court of law with jurisdiction to obtain urgent, interim relief or collect outstanding debts due and payable by either Party to the other.

19.7 **Whole Agreement.** This Agreement and the Annexures thereto constitutes the entire Agreement between the Parties in respect of the subject matter hereof and neither Party shall be bound by any undertakings, representations, warranties or promises not recorded in this Agreement. Any agreements previously entered into by the Parties are hereby negated. No representations, undertaking or promise not specifically recorded in this Agreement shall be binding on either Party.

19.8 **No Variation.** No variation or consensual cancellation of this Agreement and no addition to this Agreement shall be of any force or effect unless reduced to writing and signed on behalf of both Parties by their duly authorised representatives.

19.9 **Waiver.** No relaxation or indulgence granted or given by any Party or failure by any of the Parties to exercise any right shall be deemed to be a waiver of any of that Party's rights in terms of this Agreement and such relaxation or

indulgence shall not be deemed to be novation of any of the terms and conditions of this Agreement.

19.10 **Severability.** Each phrase, sentence, paragraph and clause in this Agreement is severable, the one from the other, notwithstanding the manner in which they may be linked together or grouped grammatically and if in terms of any judgment or order any phrase, sentence, paragraph or clause, is found to be defective or unenforceable for any reason the remaining phrases, sentences, paragraphs and clauses, as the case may be, shall nevertheless be and continue to be of full force and effect.

19.11 **Escalation.** Notwithstanding the commencement date of the Agreement, the fees will escalate annually on 1 April each year, upon 30 days' written notice by Experian. The fees shall escalate the higher rate of 10% or CPI, for the preceding 12 (twelve) months, unless specifically agreed in writing by the parties.

Annexure 1: Subscriber Information Sheet

Subscriber Business Information				
Business Name (t/a if applicable):				
Registration / Identity Number:				
VAT Number:				
Office Telephone Number:				
E-mail address:				
Address:				
Invoice / Statement Details <i>Note: Invoice sent per e-mail to yourselves on a monthly basis on the 23rd day of each month</i>				
Contact Person's Name and Surname:				
E-mail Address:				
Compliance Queries: Contact				
Contact Person's Name and Surname:				
Email Address:				
Subscriber Classification (General) please select the most appropriate option				
Credit Provider				
Non Credit Provider				
Subscriber Classification (Specific) please select the most appropriate option				
Bank		Telecommunication provider	Employer / Employment Agency	
Retailer		Utility Company	Debt Collector	
Vehicle and Asset Finance and Other Financial Institution		Insurance Company	Micro Lender	
Other: (add details)				
Subscriber Main Product Classification (main product offering) please select the most appropriate option (only one)				
Building Loan		Credit Card	Debt Recovery	
Single Credit Facility		Open - Services	Garage Card	
Home loan		Instalment Account	Life Insurance	
One Month Personal Loan		Secured Pension / Policy Backed Lending	Open – Limitless Account	
Personal loan		Revolving Credit	Store Cards	
Short Term Insurance		Student Loan	Utility Account	
Overdraft Account		Rentals Asset	Rentals Property	
Vehicle Asset Finance		Revolving Credit	Non Store Card	
Other: (add details)				
General				
I consent to Experian sharing my info with its group companies for marketing purposes Yes _____ No _____				
E-mail Address:				
Signature				

Subscriber Signature:
Representative Name & Surname:

Annexure 3: Certification in terms of the Act

In terms of Section 26 of the Act, Credit Information may only be reported for Prescribed Purposes or with Consumer consent. Please identify the purpose/s for which your business accesses the data:			
Prescribed Purpose:		Yes / No	Do you have Consumer consent
26(2)(a)	The assessment by a credit provider of likelihood of repayment and affordability by a consumer, where payment is in respect of any part of the cost of goods or services advanced, is deferred, or where repayment of a monetary amount advanced is deferred		Consent not required
26(2)(b)	Pre-screening prospective consumers for risk and affordability by credit providers, prior to making a pre-approved offer for goods or services		Consent not required
26(2)(c)	An Investigation of an economic crime by a statutory enforcement agency or the police service		Consent not required
26(2)(d)	Economic crime detection and prevention services		Consent not required
26(2)(e)	Detection and prevention of identity theft		Consent not required
26(2)(f)	Assessing an application for insurance or an insurance claim		Consent not required
26(2)(g)	Verifying educational qualifications and employment		Consent not required
26(2)(h)	Assessment of a prospective employee where a good credit standing is an inherent requirement of the job applied for		Consent not required
26(2)(i)	Tracing a consumer for the purpose of distributing unclaimed funds, such as pension funds and insurance claims		Consent not required
26(2)(j)	Tracing a consumer in respect of an agreement between the consumer and a provider of goods or services		Consent not required
26(1)(b)	A credit bureau may report or release in respect of a consumer, Credit Information that is not related to and not intended for the purpose of providing consumer credit, provided that the consumer's consent has been obtained to use the information for such purpose and to submit, compile and report such information		Consent Required
As stipulated in a relevant law	Credit Information requested in terms of other national legislation		Consent Required

Certificate:

Subscriber Name: complies with the provisions and regulations of the Section applicable to its activities and certifies that it will only access the Credit Information from the bureau for a purpose as stipulated in this Annexure 3.

I warrant that the facts contained herein, are within my direct and personal knowledge.

Date: _____

Signature: _____ Name: _____

Who warrants that he/she has been duly authorised to sign this certificate